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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

CNR No. DLHC010422072026

+ **W.P.(CRL) 2752/2026 & CM APPL. 27694/2026**

ANIKET KUMAR GUPTA

.....Petitioner

Through: Mr. Umesh Kumar, Mr. Hitender Yadav, Mr. Ratnesh, Mr. Kunal Yadav, Mr. Ranjan Choudhary, Mr. Yasser Shabir Chowdhary, Mr. Shantanu Sagar and Mr. Mohd. Atif, Advs.

Versus

GOVT OF NCT OF DELHI & ORS.

.....Respondents

Through: Mr. Tushar Mehta, Solicitor General of India and Mr. Chetan Sharma, Additional Solicitor General, Mr. Sameer Vashisht, SC, Civil, GNCTD, Mr. Tushar Sannu, SC, MCD, Ms. Pratima N. Lakra, CGSC, Mr. Amol Sinha, ASC, Criminal, Mr. Shailendra Kumar Mishra, Mr. Naman, Ms. Harshita Nathrani, Mr. Priyankar Tiwary, Mr. Vaibhav Tripathy, Ms. Rajbala, Mr. Kshitiz Garg, Advs. for R-1-4.

Mr. Mohinder J.S. Rupal with Mr. Hardik Rupal, Ms. Aishwarya Malhotra and Ms. Tripti Sharma, Advs. for R-6.

Mr. A.K. Jain, EE (Building HQ), MCD and Mr. Saurabh Sashwat, DC, MCD.

CORAM:

HON'BLE THE CHIEF JUSTICE

HON'BLE MR. JUSTICE TEJAS KARIA

ORDER

07.09.2026

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1. Issue notice to the respondents. On behalf of Respondent No.1, Mr.



Vashisht, Standing Counsel, GNCTD appears and accepts notice whereas Mr. Sannu, Standing Counsel, Municipal Corporation of Delhi (MCD) accepts notice on behalf of respondent No.2. Mr. Amol Sinha, ASC, Criminal, appears and accepts notice on behalf of respondent No.3 and Ms. Pratima N. Lakra, CGSC accepts notice on behalf of respondent No.4. Mr. Mohinder J.S. Rupal, learned counsel has entered appearance and accepts notice on behalf of respondent No.6.

2. This Public Interest Litigation has been filed in the wake of most unfortunate incident which happened yesterday at Satya Niketan locality where two buildings which were being run as PG hostel for boys, housing around 50 students, collapsed causing loss of at least 7 human lives. Many of the students residing in these buildings, who are affected by the collapse, have been taken to hospital and many others are still presumably lying under the debris fighting for help and their lives.

3. Though, Shri Tushar Mehta, learned Solicitor General of India who appears for Union of India, Delhi Police and MCD has assured that the authorities will not leave any stone unturned so far as the rescue operations are concerned, however, what we can see is that a deeper and a meaningful approach should be adopted by the authorities.

4. Admittedly, the buildings which collapsed housed students studying in the associated/affiliated colleges of the Delhi University situated in its South Campus, many of whom are from out-stations. It is common knowledge that Delhi University does not provide adequate facilities of hostel to its out-station students, as a result of which the students and their parents are constrained to take shelter in these PG hostels. The reported incident is not only unfortunate but it evokes deep concerns about



inadequate housing facilities in the form of hostels run by the Delhi University/Government, safety and security of the students and the inadequate measures deployed by MCD and other authorities to regulate such PG hostels.

5. The responsibility, *prima facie*, in our opinion, for such mishaps does not lie solely on the owner of the PG hostel rather, the responsibility also goes to the University authorities as also to the MCD which is responsible to ensure that every single development in Delhi, such as construction of a building or repair etc., is carried out strictly in accordance with the building bye-laws or other regulations regulating such development.

6. It is not difficult to imagine that such mishaps are the result of inadequate measures deployed by the MCD and other authorities. Had the authorities been alive to their responsibilities and duties cast on them statutorily, perhaps, such incidents could have been avoided.

7. In the aforesaid view of the matter, we call upon all the respondents to file their separate responses to the averments made in the writ petition. While filing the affidavit in reply, the MCD shall clearly indicate as to whether there are any statutory/Executive Regulations in place to regulate the PG hostels in Delhi. The University, while filing its response to the present writ petition, shall indicate as to how many out-stationed students take admission in the colleges affiliated to it and how many hostels, along with their respective capacities, are being run either by the University or by the Government.

8. So far as yesterday's incident is concerned, we direct that the MCD, at the highest executive level, shall take up the issue and get an inquiry conducted into the issue as to whether buildings which collapsed in the



incident were constructed in terms of any valid permission or not and if it is found that the buildings were constructed without any legal permission, or in derogation of the relevant bye-laws, the MCD, in the inquiry to be conducted under this Order, shall fix the responsibility of the officer/employees concerned for such a lapse.

9. The response to be filed by the MCD shall also indicate as what action has been proposed against the erring officers/officials, if any.

10. We also direct that the MCD in a weeks' time from today shall carry out the inspection of all such PG hostels falling within its jurisdiction and prepare a report which shall indicate as to whether the buildings in which such PG hostels are housed, have been constructed in terms of the requisite permissions and further as to whether there has been violation of such permissions/building bye-laws.

11. The reply shall also contain as to how many students are residing in these PG hostels.

12. We note the assurance given on behalf of the MCD, Union of India and the Delhi Police by the learned Solicitor General that all possible steps are being taken and the rescue operation is being carried out in full swing. We hope that the efforts being deployed at present shall be doubled by the authorities concerned so that the human lives can be saved. The affidavit under this Order shall be filed within 10 days.

13. List on 25.09.2026.

DEVENDRA KUMAR UPADHYAYA, CJ

TEJAS KARIA, J

SEPTEMBER 07, 2026

N.Khanna